

HUM 4747: Legal Issues and Cyber Law

Class 2: Types of Intellectual Property — A Deep Dive

Aashnan Rahman

BSc in SWE
Islamic University of Technology (IUT)

Winter 2024-2025

Outline

- ① Recap & Overview
- ② Copyright
- ③ Trademarks
- ④ Patents
- ⑤ Industrial Designs
- ⑥ Geographical Indications
- ⑦ Trade Secrets & Other IP Types
- ⑧ Comparison & Summary

Quick Recap from Last Class

- IP = **Creations of the mind** protected by law
- IP law balances **creator rights** vs. **public interest**
- Key frameworks: **WIPO, TRIPS, Paris & Berne Conventions**
- Bangladesh IP managed by: **DPDT + Copyright Office**

Today's Goal

Deep dive into **each type of IP** — what they protect, how long they last, how to register, and real-world examples.

The TRIPS Classification of IP

According to the **TRIPS Agreement** (Sections 1–7 of Part II), IP includes:

- ① **Copyright** and Related Rights
- ② **Trademarks**
- ③ **Geographical Indications**
- ④ **Industrial Designs**
- ⑤ **Patents**
- ⑥ **Layout Designs** (Topographies) of Integrated Circuits
- ⑦ **Undisclosed Information** (Trade Secrets)

Additionally: Protection against **Unfair Competition** and control of **Anti-Competitive Practices** in Contractual Licenses.

Copyright — What is it?

Definition

Copyright describes the **rights that creators have** over their literary and artistic works. It protects the **expression of ideas**, not the ideas themselves.

What does Copyright cover?

- Books & novels
- Music & sound recordings
- Paintings & sculptures
- Films & documentaries
- **Computer programs / Software**
- Databases
- Maps & technical drawings
- Advertisements

Important

Software is protected as “literary work” under Section 2(46) of the Bangladesh Copyright Act, 2000.

Copyright — Key Features

- **Automatic protection:** Copyright exists **from the moment of creation** — no registration required!
- **But registration helps:** It serves as **prima facie evidence** in court
- **Transferable:** Can be transferred, licensed, or inherited
- **The Copyright Board of Bangladesh** can also grant licenses

Duration of Copyright in Bangladesh

Type of Work	Duration
Literary, dramatic, musical, artistic	60 years after author's death
Films, sound recordings	60 years from publication
Computer programs	60 years from publication
Photographs	60 years from publication
Government/international works	60 years from publication

Governing Laws

- **Copyright Act, 2023** — primary law (replaced 2000 Act)
- **Copyright Rules, 2006/2010** (still applicable)
- Administered by: **Copyright Office** under Ministry of Cultural Affairs

2023 Update

Stronger digital protections, expanded fair use for education/research, higher penalties for piracy. Software still protected as literary work.

Three types of remedies for infringement:

- ① **Civil:** Injunction, damages, accounts — filed at **District Judge Court**
- ② **Criminal:** **6 months to 4 years** imprisonment + fine of **Tk. 50,000 – 2,00,000**
- ③ **Administrative:** Ban import of infringing copies, confiscation

Software Piracy (Amendment 2005)

For **commercial** software piracy: Fine **Tk. 1,00,000 – 4,00,000**. Non-commercial use may receive lesser punishment.

Copyright — Real-World Examples

Example 1: YouTube Content ID

YouTube's automated system scans uploads against a database of copyrighted material. If your video uses a copyrighted song, it gets **demonetized** or **taken down**. This is copyright enforcement at scale.

Example 2: Napster (2001)

Napster allowed free music sharing. The **Recording Industry Association of America (RIAA)** sued and won. Napster was shut down. This case **shaped digital copyright law** worldwide.

Example 3: Software Piracy in Bangladesh

In 2019, BSA (Software Alliance) estimated Bangladesh's software piracy rate at **over 80%**, costing the industry hundreds of millions of dollars annually.

Trademarks — What are they?

Definition

A trademark is a **sign that distinguishes** the products or services of one enterprise from those of others. It can be a word, phrase, symbol, design, or combination.

Types of Trademark Symbols:

- **TM**[™] — Used for an **unregistered** trademark (for products)
- **SM** — Used for an **unregistered service mark** (for services)
- **®** — Used for a **registered trademark**

Quick Think

Can you identify trademarks around you right now? Think about the logos on your phone, laptop, clothes, and food items.

Trademark — Registration Process in Bangladesh

- ① **Search availability** of the name/mark
- ② **File application** with DPDT
- ③ DPDT issues **Official Filing Receipt** (application number + date)
- ④ Registrar examines for: (a) **Distinctiveness** & (b) **Legal compliance**
- ⑤ If accepted → **Letter of Acceptance** issued
- ⑥ Mark published in **Trade Marks Journal** for opposition
- ⑦ **Opposition period**: 2 months from publication
- ⑧ If no objection → **Certificate of Registration** issued

Validity

Initial: **7 years** from filing date. Renewable for successive periods of **10 years** each.

Trademark — Legal Framework in Bangladesh

Key Laws

- **Trademarks Act, 2009 + Trademark Rules, 1963/2015**
- Administered by: **DPDT** under Ministry of Industries

Penalties for Trademark Violations (Sections 73–91):

- **First offense:** Fine of **Tk. 2,00,000** + up to **2 years imprisonment**
- **Second offense:** Fine of **Tk. 3,00,000** + up to **3 years imprisonment**
- Offenses include: falsifying trademarks, making counterfeit dies/machines, selling fake goods

The Customs Act, 1969

Section 15 prohibits importing goods with **counterfeit trademarks**. Such goods can be **seized and confiscated** under Section 17.

Trademark — Famous Examples

Global Examples

- **Apple's bitten apple** — one of the most valuable trademarks globally
- **Nike's "Just Do It"** — trademarked slogan since 1988
- **McDonald's Golden Arches** — recognized worldwide
- **Google** — the word itself is a trademark

Bangladesh Context

- DPDT received **1,44,706** trademark applications (1971–2009)
- **80,503** were still pending!
- Common issue: counterfeit consumer products in local markets
- Fake brands of electronics, cosmetics, medicines

Patents — What are they?

Definition

A patent is an **exclusive right** granted for an **invention**. It gives the patent owner the power to decide how — or whether — the invention can be **used by others**.

Requirements for patentability:

- ① **Novelty** — must be new, not known before
- ② **Inventive Step** — must not be obvious to experts in the field
- ③ **Industrial Application** — must have practical use
- ④ Must not be contrary to **law or morality**

The Trade-Off

In exchange for the exclusive right, the inventor must **publicly disclose** the technical details of the invention. This allows society to **learn from and build upon** the innovation.

Governing Law

Patents and Designs Act, 1911 + Patent and Design Rules, 1933

- Protection period: **16 years** (under current Act)
- Proposed new act: **20 years** (as per TRIPS Article 33)

Patent Application Process:

- ① File application with **DPDT** (description, usefulness, drawings)
- ② “Patent pending” period for **inspection**
- ③ DPDT checks: Novelty, Inventive Step, Industrial Application
- ④ Uses **WIPO databases** to verify (free for LDCs)
- ⑤ If approved → patent is **granted and enforced**

Key Stat

In 2009: **330 patent applications** received (55 domestic, 275 foreign), only **131 approved**.
No domestic firm has applied for IP protection abroad.

Patents — Real-World Examples

Example 1: Pharmaceutical Patents

When a company like Pfizer patents a new drug, competitors cannot manufacture it for **20 years**. After the patent expires, others can make **generic versions** — which is why generic drugs are cheaper. Bangladesh's pharma industry benefits from the **LDC TRIPS waiver** to produce affordable generics.

Example 2: Amazon's 1-Click Patent

Amazon patented the “**1-Click**” buying process in 1999. This meant competitors like Barnes & Noble couldn't use a similar checkout process. The patent was controversial but was upheld.

Example 3: Bangladeshi Scientific Achievement

Bangladeshi scientists who discovered the genetic form of the **jute genome** could potentially seek international patent protection — a first for the country.

Industrial Designs — What are they?

Definition

An industrial design protects the **ornamental or aesthetic aspect** of an object — its shape, configuration, pattern, lines, or color.

Covers:

- 3D features: **shape, surface** of products
- 2D features: **patterns, lines, colors**
- Must be **new, original, and unique**

Does NOT cover:

- Purely **functional** designs
- Designs contrary to **public order or ethics**
- Designs using **official symbols/emblems**

Bangladesh Law

Governed by **Bangladesh Industrial Designs Act, 2023** (Act No. 22 of 2023).

Protection: **10 years** initial + renewable 3×5 years = **maximum 25 years**.

Industrial Design — Registration & Protection

How to register:

- ① File application with **DPDT**
- ② Provide: personal info, sample, drawings/photos of invention
- ③ Include full description understandable by a **skilled professional**
- ④ After examination → **Registration Certificate** issued

Rights granted:

- **Exclusive right** to stop unauthorized copying, making, selling, imitating
- Can **license** design to third parties
- Can **sue** firms that exploit the design without permission

Real Example

The distinctive **shape of a Coca-Cola bottle** is a protected industrial design. Even without seeing the label, you can recognize it by its shape alone.

Geographical Indications (GI) — What are they?

Definition

A GI is a **sign used on goods** that have a specific **geographical origin** and possess qualities, reputation, or characteristics essentially attributable to that place.

Famous GI Examples:

- **Roquefort Cheese** — cheese made in Roquefort, France
- **Darjeeling Tea** — tea grown in Darjeeling, India
- **Kanchipuram Silk** — silk from Kanchipuram, India
- **Swiss Watches** — watches made in Switzerland

Geographical Indications (GI) — Bangladesh

Bangladesh GI Products

- **Jamdani Saree** — intricate handloom saree from Dhaka (first GI, 2016)
- **Bangladesh Hilsa** — national fish, unique taste from Padma/Meghna rivers (2017)
- **Nakshi Kantha** — embroidered quilt from across Bangladesh (2021)
- **Shital Pati** — cooling mat from Sylhet reeds (2021)
- **Fazli Mango** — late-season mango from Rajshahi (2021)
- **Bogra Doi** — creamy yogurt from Bogura (2022)
- **Tangail Chomchom (Porabari)** — spongy sweet from Tangail (2022)
- **Black Bengal Goat** — indigenous leather/meat breed (2023)
- **Comilla Rosmalai** — milky sweet from Comilla (replace Khadi; 2022)
- **Haribhanga Mango (Rangpur)** — tangy mango (2024)
- **Tangail Saree** — fine cotton saree (2022)
- **Rajshahi Silk** — luxurious silk fabrics (2022)

Key Laws

- **Geographical Indication Goods (Registration & Protection) Act, 2013**
- **Geographical Indication Goods Rules, 2015**
- Authority: **DPDT**

Key Features:

- Only an **association or cooperative** can apply to register (not individuals)
- Initial validity: **5 years**, renewable
- Protects against: misuse of the geographical name on non-genuine products

Why GI Matters

GI protection prevents other countries from labeling their products as “Jamdani” or “Hilsa from Bangladesh” when they are not genuinely from Bangladesh. This protects both **producers** and **consumers**.

Definition

A trade secret is **confidential business information** that provides a company with a **competitive advantage**. Unlike patents, trade secrets are **never publicly disclosed**.

Examples:

- **Coca-Cola's formula** — secret for 130+ years
- **Google's search algorithm**
- **KFC's 11 herbs and spices**

Key Differences from Patents:

- No registration needed
- **No time limit** (while it stays secret)
- No protection if independently discovered
- Requires **active measures** to keep secret

Bangladesh: No dedicated trade secret law yet. A draft “Protection of Undisclosed Information Law” is under preparation.

Other IP Types

Utility Models (“Petty Patents”)

Protect **minor inventions** that may not qualify for a full patent. Shorter protection period, simpler registration. **BD:** Draft law being prepared.

Layout Designs of Integrated Circuits

Protects the **3D configuration of electronic circuits** (chip design). Critical for the **semiconductor industry**. **BD:** Draft law under preparation.

Traditional Knowledge & Folklore

E.g., traditional medicine, folk music, indigenous textile patterns. **BD:** No legal framework yet for TK/folklore protection.

IP Types — Comparison Table

	Copyright	Trademark	Patent	Industrial Design
Protects	Creative works	Brand identity	Inventions	Product appearance
Duration (BD)	60 years	7 yrs + renewal	20 years	10 yrs (max 25)
Registration BD Law	Voluntary Copyright Act 2023	Required TM Act 2009	Required Patents Act 2023	Required Designs Act 2023
Office	Copyright Office	DPDT	DPDT	DPDT

	GI	Trade Secret
Protects	Regional product identity	Confidential business info
Duration (BD)	5 yrs + renewal	Unlimited (if kept secret)
Registration BD Law	Required GI Act 2013	Not applicable No separate law yet
Office	DPDT	N/A

Which type of IP protects the following?

- ① You write a mobile app.

Which type of IP protects the following?

- ① You write a mobile app. → **Copyright**

Which type of IP protects the following?

- ① You write a mobile app. → **Copyright**
- ② You invent a new water purification device.

Which type of IP protects the following?

- ① You write a mobile app. → **Copyright**
- ② You invent a new water purification device. → **Patent**

Which type of IP protects the following?

- ① You write a mobile app. → **Copyright**
- ② You invent a new water purification device. → **Patent**
- ③ You create a unique logo for your startup.

Which type of IP protects the following?

- ① You write a mobile app. → **Copyright**
- ② You invent a new water purification device. → **Patent**
- ③ You create a unique logo for your startup. → **Trademark**

Which type of IP protects the following?

- ① You write a mobile app. → **Copyright**
- ② You invent a new water purification device. → **Patent**
- ③ You create a unique logo for your startup. → **Trademark**
- ④ You design a uniquely shaped perfume bottle.

Which type of IP protects the following?

- ① You write a mobile app. → **Copyright**
- ② You invent a new water purification device. → **Patent**
- ③ You create a unique logo for your startup. → **Trademark**
- ④ You design a uniquely shaped perfume bottle. → **Industrial Design**

Which type of IP protects the following?

- ① You write a mobile app. → **Copyright**
- ② You invent a new water purification device. → **Patent**
- ③ You create a unique logo for your startup. → **Trademark**
- ④ You design a uniquely shaped perfume bottle. → **Industrial Design**
- ⑤ Rangpur's special orange variety is famous.

Which type of IP protects the following?

- ① You write a mobile app. → **Copyright**
- ② You invent a new water purification device. → **Patent**
- ③ You create a unique logo for your startup. → **Trademark**
- ④ You design a uniquely shaped perfume bottle. → **Industrial Design**
- ⑤ Rangpur's special orange variety is famous. → **Geographical Indication**

Which type of IP protects the following?

- ① You write a mobile app. → **Copyright**
- ② You invent a new water purification device. → **Patent**
- ③ You create a unique logo for your startup. → **Trademark**
- ④ You design a uniquely shaped perfume bottle. → **Industrial Design**
- ⑤ Rangpur's special orange variety is famous. → **Geographical Indication**
- ⑥ Your company has a secret algorithm.

Which type of IP protects the following?

- ① You write a mobile app. → **Copyright**
- ② You invent a new water purification device. → **Patent**
- ③ You create a unique logo for your startup. → **Trademark**
- ④ You design a uniquely shaped perfume bottle. → **Industrial Design**
- ⑤ Rangpur's special orange variety is famous. → **Geographical Indication**
- ⑥ Your company has a secret algorithm. → **Trade Secret**

Key Takeaways

- ① **Copyright:** Automatic; protects creative works including software; 60 years
- ② **Trademark:** Must be registered; protects brand identity; 7+ years renewable
- ③ **Patent:** Must be novel & useful; protects inventions; 16 years (BD)
- ④ **Industrial Design:** Protects appearance; 5–15 years (BD)
- ⑤ **GI:** Protects regional products; registered by associations
- ⑥ **Trade Secret:** No registration; unlimited duration; no law in BD yet

Next Class Preview

IP Laws, Enforcement & Violations: How are IP rights enforced? What are the penalties? What are the challenges in Bangladesh? Real case studies of IP violations.

- WIPO, “Types of Intellectual Property”, <https://www.wipo.int/about-ip/en/>
- Copyright Act, 2000 (Act No. XXVIII of 2000), Bangladesh
- Copyright (Amendment) Act, 2005 (Act No. XIV of 2005)
- Trademarks Act, 2009, Bangladesh
- Patents and Designs Act, 1911, Bangladesh
- GI Goods (Registration & Protection) Act, 2013, Bangladesh
- Khondker & Nowshin (2013), “Developing National IP Policy for Bangladesh”, WIPO
- Ahmed, A. (2016), “Enforcement of IPRs in Bangladesh”, IOSR-JHSS
- FM Associates, “IP Law in Bangladesh”, <https://www.fmassociatesbd.com>
- BSA Global Software Survey, <https://www.bsa.org>